

to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.’ [Citations.]”.)

As to the third prong, Plaintiff provides the more convincing argument that the information surrounding the attorneys’ fees and costs is not subject to the attorney-client privilege. Plaintiff argues that Defendant’s counsel waived the privilege when he submitted the declaration and billing records for \$15,770.16, at the behest of the client, respectively acting inconsistent with the intent to maintain privilege as to the aforementioned information. Plaintiff mainly relies on *California-American Water Co.* case for support, which states:

Waiver means ‘the intentional relinquishment or abandonment of a known right.’ And whether there has been waiver is a question of fact. Waiver ‘always rests upon intent.’ The intention may be express, based on the waiving party’s words, or implied, based on conduct that is ‘so inconsistent with an intent to enforce the right as to induce a reasonable belief that such right has been relinquished.’

(*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1292 [internal citations omitted].)

In sum the prongs lean more in favor of the Defendant, as Plaintiff has not show “extremely good cause” for the deposition of Defendant’s attorneys and paralegals. (*Carehouse Convalescent Hospital, supra*, 143 Cal.App.4th 1558, 1562.)

19. *Bank of America, N.A., v. Serrata*, Case No. CIVDS1828385
Motion to Set Aside Dismissal & Entry of Judgment
6/1/26, 8:30 a.m., S-17

The Court would **GRANT** this unopposed motion.

This is a limited civil matter. The submitted declaration supports that the parties entered into a settlement agreement. Plaintiff would dismiss pursuant to Code of Civil Procedure section 664.6, with the Court retaining jurisdiction to enforce the agreement, and certain payments would be make until the debt was paid in full. In the case of default, the parties agreed to judgment in favor of Plaintiff. (Zarco Decl., ¶¶3-4 & Exh. 1.) Movant includes the payment history that shows the cessation of payments. (Zarco Decl., ¶6 & Exh. 2.)
